they are true." Defendant April Watrous lacks personal knowledge for the statements in her declaration. She does not state that she has knowledge of this information but instead that she has been informed that this information is true. Indeed, she asserts no basis for how she could know this information, except through hearsay from non-declarant parties, which is confirmed by the Declaration of Everett Watrous III. Defendants' Reply seems to confirm this lack of personal knowledge, as it indicates that her statements are all premised on her review of documents.[2] Whether those documents contain any competent evidence of conflict would be a different question, but placed before the Court in this format, they are, at most, hearsay. As Plaintiff contends, April Watrous's declaration is therefore not competent evidence of any conflict. Evid. Code § 702.

There is no competent evidence that Counsel del Beccaro ever represented CMM Systems, Inc. or has any knowledge with respect to CMM Systems, Inc. All competent evidence suggests he was, and remains, Everett Watrous III's personal lawyer. Indeed, even Defendants' cross-complaint, at paragraph 10, characterizes the Stock Purchase Agreement as between the two individuals. Aside from the vague and unsubstantiated allegations in the declaration, Defendants cite *absolutely no law or facts* in support of the assertion that the representation of Plaintiff Watrous III in a sale of his shares was necessarily a representation of the corporation. To the extent that Defendants wish to depose Counsel del Beccaro as to "contested issues regarding the contract's interpretation," that would seem to run squarely into trampling on the fact-finder's role in interpreting the disputed contract and not be admissible in any event. To the extent that Defendants wish to depose Counsel regarding intent or negotiations, he would possess no relevant factual information beyond that of Plaintiff Watrous III, as he never spoke with Defendants.

For the reasons set forth above, Defendants' Motion is **denied.** The Court declines to award sanctions.

7. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
HEARING IN RE: PETITION TO ASSIGN CASE NUMBER AND TO SET REASONABLE DEPOSITION FEE
FILED BY:
TENTATIVE RULING:

This matter comes before the Court in a slightly unusual procedural posture. The parties appear to have proceeded straight to arbitration without any filing in this Court.[3] When a dispute about expert fees arose, however, the arbitrator apparently determined that it should be resolved in Superior Court, so Claimant has filed a stand-alone motion. Claimant Juliano Silva sought to take the deposition of Respondent James River Insurance's expert, Dr. Robert Rovner. They now seek to reduce the fee, arguing that it was not reasonable. Both parties submitted briefing and declarations. As further explained below, Claimant's motion is **granted**.

[2] That the brief makes this claim does not save the declaration, as the declaration itself remains entirely vague as to the basis of the statements within it. Counsel cannot rescue a faulty declaration with statements in a brief.

[3] The Court saw some discussions in the papers about how the matter arrived in arbitration—nothing written here is intended to express any findings or opinions on that issue.

Claimaint Silva was injured in a vehicle collision. Respondent James River Insurance apparently disputes the extent of Claimant Silva's injuries. As part of the dispute, Respondent hired Dr. Robert Rovner to perform an Indepenent Medical Exam, which occurred on July 24, 2023. In late 2024 through early 2025, the parties negotiated the timing of and eventually the occurrence of Dr. Rovner's deposition. Respondent requested that the deposition occur after business hours so that Dr. Rovner did not need to close his clinic to participate. Claimant did not agree, but set the deposition for 4:00 pm for it to go for "a couple of hours." Pursuant to his rate sheet, Dr. Rovner typically charges $6,600 minimum for a half-day deposition during business hours, and $1,475 per hour of deposition (presumably off-hours). For this deposition, given Claimant's objections, Dr. Rovner agreed not to charge his minimum of $6,600 but instead charged $2,950 for the first hour of the deposition and $1,475 for the second hour. Shortly before the deposition, Claimant again objected to Dr. Rovner's fee but the deposition proceeded, took place for two hours, and Claimant sought relief afterward.

In support of his Motion, Claimant has submitted the rate sheets of two other experts—his experts in this matter—a chiropractor who performs Independent Medical Examinations, Alireza Bagherian, and a spinal doctor who also performs IMEs, Dr. Santi Rao. Alireza Bagherian charges $850 per hour for depositions (with a two-hour minimum, charged in 30-minute increments) and $600 per hour for IMEs. Dr. Rao charges $985 per hour for depositions (with a one-hour minimum) and $950 per hour for IMEs. It is also the case that Dr. Rovner charges $990 per hour for record review, report preparation, and IMEs.

At his deposition, Dr. Rovner could not explain how he set the $990 per hour rate but did confirm that closing his clinic for deposition testimony was the reason for the elevated rate for the first hour in this matter.

The sole question before the Court is whether Dr. Rovner's rate is reasonable and customary and therefore chargeable to claimant. A party taking the deposition of the opposing party's expert must pay that expert's fee. Code Civ. Pro. §§ 2034.450, 2034.460. If, however, the deposing party believes the expert's fee is unreasonable, it can petition to the court for the setting of a reasonable fee. Code Civ. Pro. § 2034.470(a). The parties must meet and confer, including by exchanging information regarding "(1) Proof of the ordinary and customary fee actually charged and received by that expert for similar services provided outside the subject litigation. (2) The total number of times the presently demanded fee has ever been charged and received by that expert. (3) The frequency and regularity with which the presently demanded fee has been charged and received by that expert within the two-year period preceding the hearing on the motion." Code Civ. Pro. § 2034.470(b). The court may agree that the fee is reasonable or, if it disagrees, set a reasonable fee. Code Civ. Pro. § 2034.470(f).[4]

The first question is whether this is Dr. Rovner's customary fee. Although Claimant raises a few objections in this area, it is not a hard question. It is clear from Exhibits A and E that the fee charged was consistent with Dr. Rovner's practice of charging $1,475 for evening hours depositions and more for work-hours depositions. Although throughout the exhibits and the briefs, Claimant argues that depositions must occur during business hours, the only citation provided says nothing of the sort:

[4] Unfortunately, the parties' briefs are both unencumbered by citations to authority; they both cite a single case for essentially the same formative principles. A quick perusal of common treatises revealed relevant additional authority of assistance to the Court.

There is nothing in Code of Civil Procedure section 2025.270 that says a deposition must be during "reasonable business hours."[5] Although it is the case that Dr. Rovner charged Respondent a lower rate, that was for different work: the IME and record review rate of $990 was in his rate sheet and was not specific to this case. Moreover, Claimant's experts also charge different rates for IMEs versus deposition time. Contrary to Claimant's unsupported assert, "variations in fee charges are appropriate, and that the expert's charges to an opposing party for deposition testimony can be greater than his standard charges." (*Rancho Bernardo Development Co. v. Superior Court* (1992) 2 Cal.App.4th 358, 362.)

The second question is the more relevant one: Is Dr. Rovner's rate reasonable? First, while he explained that business hours depositions cost him clinic time, that explanation does not explain why IMEs—which also can potentially occur during business hours—are not similarly priced differently depending on when they occur. He could not defend the actual amounts of his different rates. More importantly, however, Respondent has wholly failed to comply with 2034.270(c) and (d), which provide:

> (c) In addition to any other facts or evidence, the expert or the party designating the expert shall provide, and the court's determination as to the reasonableness of the fee shall be based on, proof of the ordinary and customary fee actually charged and received by that expert for similar services provided outside the subject litigation.
> (d) In an action filed after January 1, 1994, the expert or the party designating the expert shall also provide, and the court's determination as to the reasonableness of the fee shall also be based on, both of the following:
> (1) The total number of times the presently demanded fee has ever been charged and received by that expert.
> (2) The frequency and regularity with which the presently demanded fee has been charged and received by that expert within the two-year period preceding the hearing on the motion.

Without that information, the Court can make no determination that Dr. Rovner's fee is reasonable. Claimant provided two experts from which the Court could "consider the ordinary and customary fees charged by **similar experts for similar services** within the relevant community and any other factors the court deems necessary or appropriate to make its determination." Respondent provided an unsupported assertion that "There are many retained orthopedic experts, even some treating physicians, that charge up to $3,000 per hour." Supporting evidence of this assertion would have been useful information for the Court's analysis. Given the only evidence before this Court, there is no contrary conclusion but that Dr. Rovner's fee is unreasonable. The Court finds that **$1000 per hour** is reasonable—on the basis of his other rates and the shared concept that depositions should garner a slightly higher fee than IMEs.

The Court ends by noting that *Dr. Rovner* is not without recourse:

> [N]othing in section 2034, subdivision (i)(2) or subdivision (i)(4) provides that a court's determination of the "reasonable" fee a deposing party must pay for deposing an

[5] The only reference the Court could find in the Code to those words was in section 2020.430, regarding custodians of records.

> expert witness precludes that expert witness from charging or receiving from his or her client any balance or "unreasonable" portion of his or her fee. On the contrary, we conclude section 2034 transfers to the deposing party only those fees of the expert to the extent they are 'reasonable.' Any fees charged by the expert in excess of the "reasonable" fee determined by the court remain a matter of negotiation and agreement between the expert witness and the party that designated the expert witness.

(*Marsh v. Mountain Zephyr, Inc.* (1996) 43 Cal.App.4th 289, 300.) That James River Insurance contracted with a doctor with an unreasonable fee—on the evidence before the Court—does not mean that Juliano Silva should pay it. It also, does not mean, however, that Dr. Rovner is not entitled to his contractual payments. James River must refund the overage to Claimant Silva and Dr. Rovner may only charge the amount found by this Court to be reasonable at any further depositions.

8. 9:00 AM CASE NUMBER: C25-03558
CASE NAME: SNIR BEN SHLOUSH VS. JACOB ZAITLIS
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY A PRELIMINARY INJUNCTION SHOULD NOT BE GRANTED REQUESTED BY PLAINTIFF'S
FILED BY:
TENTATIVE RULING:*

Plaintiff Snir Ben Shloush's request for a preliminary injunction is **denied** for the following reasons.

Background and Procedural History

Plaintiff Snir Ben Shloush and defendant Jacob Zaitlis are co-founders and co-shareholders of nominal defendant Creekside Pro Construction Inc. ("Creekside"), a California licensed general contractor based in Pleasant Hill. Plaintiff and defendant each hold 40% of Creekside's shares; the third shareholder, Randolph M. Dinga, holds the remaining 20% in his capacity as Responsible Managing Officer ("RMO"), whose construction license qualifies Creekside for a B license from the California Contractors State License Board ("CSLB"). Defendant Zaitlis is also Creekside's CEO and director. Plaintiff sues individually and derivatively on Creekside's behalf. Defendant Craftsman Home Contractors ("Craftsman") is a California corporation incorporated by Zaitlis on July 17, 2025, with its principal place of business in Pleasant Hill; it was licensed by the CSLB on August 18, 2025, and, according to Zaitlis, was dissolved in January 2026 before performing any work or generating any income. (FAC ¶¶ 5, 7, 8, 9, 10, 85; Cross-Complaint ¶¶ 3, 9–10; Zaitlis Decl. ¶ 37, Exhs. E–F.)

Shloush declares that he and Zaitlis co-founded Creekside in July 2021, with plaintiff managing field operations and Zaitlis handling office operations, and entered into an RMO Agreement with Dinga on July 12, 2021. (Shloush Decl. ¶ 1; FAC ¶ 2.) Shloush declares that as of July 1, 2025, Creekside had over four years of operating history, over 100 five-star reviews, and was fully staffed with office personnel, a production manager, and a sales force. (Shloush Decl. ¶ 3.c.iv., Exh. 6.) Shloush declares that in June 2025, while the parties' dispute was already underway, defendant sent plaintiff a WhatsApp message stating that Creekside's organic lead channels had opened up, that the HOZIO leads were higher quality and cost less money, and that Creekside could easily sell over $1,000,000